permit the draw to be maintained in a permanently closed position. This amendment was circulated as a public notice dated April 9, 1975 by the Commander, Third Coast Guard District, and was published in the FEDERAL REGISTER as a notice of proposed rule making (CGD 75-052) on April 4, 1975, (40 FR 15093). Five responses were received. Three had no objection, while two objected. A thorough on-site survey of these objections found them to be without substantial foundation. The objectors were requested to comment again based on these findings. No response was received from either of them.

Accordingly, Part 117 of Title 33 of the Code of Federal Regulations is amended by revising paragraph (f) (2) of § 117.225 to read as follows:

§ 117.225 Navigable waters in the State of New Jersey; bridges where constant attendance of draw tenders is not required.

* * * * *

(f) * * *

(2) *Passaic River.* Passaic and Bergen Counties highway bridges at Gregory Avenue, Second Street and West Eighth Street, Passaic. The draws need not open for the passage of vessels, and paragraphs (b) through (e) of this section shall not apply to these bridges.

* * * * *

(Sec. 5, 28 Stat. 362, as amended, sec. 6(g)(2), 80 Stat. 937 (33 U.S.C. 499, 49 U.S.C. 1655(g)(2)); 49 CFR 1.46(c)(5), 33 CFR 1.05-1(c)(4))

Effective date. This revision shall become effective on January 19, 1976.

Dated: December 12, 1975.

R. I. PRICE,
Rear Admiral, U.S. Coast Guard of, Office of Marine Environment and Systems.

[FR Doc.75-34225 Filed 12-18-75;8:45 am]

Title 43—Public Lands: Interior

CHAPTER II—BUREAU OF LAND MANAGEMENT

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 5564; AA-890]

ALASKA

Revocation of Executive Order No. 2553; Amendment of Public Land Order No. 5554

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), and section 14(h) of the Alaska Native Claims Settlement Act of December 18, 1971, 85 Stat. 688, 704 (hereinafter referred to as the Act), it is ordered as follows:

1. Executive Order No. 2553 of March 21, 1917, which withdrew lands in Alaska, covered by U.S. Survey No. 484 in connection with the U.S. Wireless Telegraph Service, is hereby revoked in its entirety, except as to the following described lands, which are now under the jurisdiction of the Federal Aviation Administration:

SEWARD MERIDIAN

T. 28 S., R. 19 W. (Fractional), U.S. Survey No. 484;
Beginning at M.C. No. 1 of U.S. Survey No. 484; thence S. 88°29' E., 3,564 ft. to Corner No. 1, the true point of beginning; thence S. 55°26' E., 175 ft. to Corner No. 2; thence N. 35°17' E., 125 ft. to Corner No. 3; thence N. 55°26' W., 175 ft. to Corner No. 4; thence S. 35°17' W., 125 ft. to the point of beginning; containing approximately ½ acre.

2. Public Land Order No. 5554 of December 10, 1975, withdrawing certain lands so that the Natives of Kodiak, Inc., may select from those lands under the provisions of section 14(h)(3) of the Act, is hereby amended to include the lands revoked in paragraph 1 of this order, and the said lands are expressly made subject to all of the terms and conditions of that order. The total areas described in Public Land Order No. 5554, as amended by this order, still aggregate approximately 46,080 acres, of which the Natives of Kodiak, Inc., may select no more than 23,040 acres.

JACK O. HORTON,
Assistant Secretary of the Interior.

DECEMBER 16, 1975.

[FR Doc.75-34214 Filed 12-18-75;8:45 am]

[Public Land Order 5563]

ALASKA

Amendment of Executive Order No. 5389, as Amended

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

Executive Order No. 5389 of July 7, 1930, as amended by Public Land Order No. 399 of August 20, 1947, which withdrew certain public lands in Alaska containing hot or medicinal springs, is hereby further amended and modified to the extent necessary to permit the withdrawal of lands under sections 11(a)(3) and 14(h) of the Alaska Native Claims Settlement Act of December 18, 1971, 85 Stat. 688, 696, 704, and selections under sections 12 or 14(h) of that Act, and all withdrawals heretofore made pursuant to sections 11(a)(3) or 14(h) of that Act, and not revoked, are hereby affirmed as of the date of this order.

JACK O. HORTON,
Assistant Secretary of the Interior.

DECEMBER 16, 1975.

[FR Doc.75-34213 Filed 12-18-75;8:45 am]

[Public Land Order 5562]

ALASKA

Amendment of Executive Order No. 5327, as Amended

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

Executive Order No. 5327 of April 15, 1930, as amended, which withdrew deposits of oil shale and lands containing such deposits owned by the United States, so far as it relates to lands in the State of Alaska, is hereby further amended and modified to the extent necessary to permit the withdrawal of lands under sections 11(a)(3) and 14(h) of the Alaska Native Claims Settlement Act of December 18, 1971, 85 Stat. 688, 696, 704, and selections under sections 12 or 14 of that Act, and all withdrawals heretofore made pursuant to sections 11(a)(3) or 14(h) of that Act and not revoked, are hereby affirmed as of the date of this order.

JACK O. HORTON,
Assistant Secretary of the Interior.

DECEMBER 16, 1975.

[FR Doc.75-34212 Filed 12-18-75;8:45 am]

[Public Land Order 5561]

ALASKA

Withdrawal for Classification or Reclassification of Some Areas Withdrawn by Section 11 of Alaska Native Claims Settlement Act

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

1. Except as otherwise provided in paragraph 3 of this order, all those lands withdrawn by section 11(a)(1) of the Alaska Native Claims Settlement Act of December 18, 1971, 85 Stat. 688, 696, (hereinafter referred to as the Act), and all those lands withdrawn by the Secretary of the Interior under the provisions of section 11 of the Act which are withdrawn as of December 16, 1975, are hereby further withdrawn from settlement, entry, location, or disposal under the public land laws including the mining and mineral leasing laws and from selection by the State of Alaska under the Alaska Statehood Act, 72 Stat. 339, but not from disposal under the Act. The lands are reserved for the purpose of completing the administration of the Act.

2. On March 31, 1976, all those lands not under pending application for Native selection shall become available for State selection unless otherwise provided in any statute, regulation, court decree, contract, or public land order.

3. Public Land Order No. 5252 of September 16, 1972, which identifies lands that may be selected by the State of Alaska following selection by the appropriate regional corporations, is not affected by this order.

4. Prior to the conveyance of any lands described in paragraph 1 of this order, the lands shall remain subject to administration by the Secretary of the Interior under applicable laws and regulations and his authority to make contracts and to grant leases, permits, rights-of-way, or easements shall not be impaired by this order. Applications for leases under the Mineral Leasing Act,